



**Webinar**

## **Life Claims: Primary Care Support England (PCSE) and GPs**

*25<sup>th</sup> January 2022 11:00 to 11:45*

<https://vimeo.com/673519015/8d5231517d>

**Thank you  
for joining**

**Please turn off your camera  
and mute your microphone**





# Life Claims: Primary Care Support England (PCSE) and GPs

A webinar looking at the issues around obtaining  
medical records on deceased policyholders

**Guest panel members:**

**Adam Hursey, Team Leader, PCSE**  
**Dr Rob Rosa, Chief Medical Officer**

**HCF committee members:**

**Kat Brightwell**  
**Clare Sherriff**  
**Kieran Tarrant**  
**Julie Yates**

# Format for today...

- Look at the common issues we see when requesting medical records on deceased patients
- Look at the process and pinch points for requesting records from PCSE
- Think about what we can do to improve responses from GPs



# What are the issues?

## Requesting records from PCSE:

- Meeting requirements to allow the release of records
- The completeness of records
- Redaction
- Delays

## Requesting records from GP surgeries:

- No longer the Data Controller
- No access to archived records
- Confidentiality - falls under GDPR



# PCSE: Access to Health Records Process

**Adam Hursey**

Team Leader, Patient Services



Primary Care Support England



# Access to Health Records Process

Important Information about your request including:

- What you should expect
- Which organisations are involved
- When to expect an outcome
- How to get in touch



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# PCSE: Access to Health Records Process

## Questions / Discussion



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# Requesting medical records from GPs

- Data Controller
- Archived records
- Confidentiality - GDPR





# Requesting medical records from GPs

**Dr Rob Rosa**

**Questions / Discussion**



# PCSE and GPs

**Any other questions?**



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# What can insurers do?

## Offer education and support to:

- Correct misconceptions
- Inform GPs and their Practice Administrators
- Provide reassurance over compliance concerns



# HCF have created a draft template

- Example cover letter
  - Personalise request
  - Key areas to question
  - Highlight scope of request
- Some Frequently Asked Questions
- One page leaflet covering the appropriate Regulation and Legislation



# Disclaimer

- Letter and enclosures are for your information and consideration
- The drafts are based on the HCF committees' understanding and interpretation of the relevant regulation and legislation
- Feel free to adopt as much or as little as you'd like, but
- You'll need to go through your usual compliance and sign-off procedures

*This disclaimer informs readers that the views, thoughts, and opinions expressed in the text belong solely to the authors, and not necessarily to the author's employer, organization, committee or other group or individual.*



Dear

**This is a request for Access to General Practice Medical Records (Deceased Patients)  
under the Access to Health Records Act 1990**

**Patient name:** \*\*\*\*\* (deceased)

**DOB:**

**Address:**

**Cause of death:**

We are currently dealing with a life insurance claim following the death of \*\*\*\*\*. To complete our assessment, we need access to certain information from the deceased's medical records, as detailed below. A copy of the consent form allowing us to request this information is attached; this has been completed by the **executor/LPR/next of kin** who is the claimant on the deceased's insurance plan.

*Please note this is **not** a Subject Access Request, **nor** a standard life insurance report and, as the patient is deceased, this request falls outside of GDPR.*

To help minimise further anxiety and distress to the deceased's family, we would be grateful if you could process this request as quickly and smoothly as possible. We very much appreciate how GPs support this process and recognise this is not a core activity and is funded separately.

Please confirm whether your practice records for **patient's name** have been sent to Primary Care Support England (PCSE)

Yes/No

- If yes, please confirm:

- The date sent

.....

- That the records sent were **paper only** (not on CD\*)

Yes/No

*\* If on CD PCSE will not be able to access/release the information*

- Whether records included a **paper copy of all computerised records**

Yes/No

### Computerised records for the deceased:

- Do you retain access to all computerised records?

Yes/No

- If no, is it possible to restore the record to obtain access?

Yes/No

If you retain copies of all medical records and/or access to computerised records, please send the following information:

**Free format targeted request**

We are happy to pay a reasonable fee for your reply to this request and would ask you to send your reply to **insurer contact details**. Recognising this is a difficult time for our customer we would be grateful for your reply within 2 weeks.

We have included some frequently asked questions at the end of this letter, and a more detailed information sheet which you might find helpful. You can find more information on the BMA website, including a publication called Access to health records - Updated to reflect the General Data Protection Regulation and Data Protection Act 2018; Section 8 deals with deceased patients. If you have received this letter electronically, you can access the report via the following link [Access to health records \(bma.org.uk\)](https://bma.org.uk).

Thank you for your help. Should your administration staff or GPs have any questions, please contact us on **telephone number/email etc.**

Yours sincerely



## Frequently Asked Questions

*Why do you need medical information on a deceased patient?*

*What are my obligations as a data controller?*

*What is the relevant legislation?*

*Who is legally permitted access to a deceased person's medical information?*

*Where can I find more information?*

### ***Access to archived medical information***

We understand it is usual to archive a deceased patients electronic medical records, which could restrict future access. It's important we understand whether it is possible for the practice to restore these records.

Our understanding from NHS guidance on Records Management is that organisations should have processes that address where and how the records of deceased persons are stored. These should include processes and procedures to enable the efficient and effective retrieval of such records within the timescales specified by the Access to Health Records Act 1990.

## Information Sheet for GPs on Access to Health Records

*Insurers will occasionally need to request and review copies of a deceased patients medical records at the time of a bereavement claim to fully understand any differences found in the information provided at application, and claim. This will be a targeted report, requesting only information relevant to the claim.*

*Recognising this will be an extremely difficult time for the beneficiary, insurers aim to complete enquiries as quickly as possible and make their decision based on the facts of the case, in a timely manner. However, this can only be achieved with your co-operation.*

This (abbreviated) information is taken from the BMA publication **Access to health records**, updated to reflect the GDPR and Data Protection Act 2018 and produced to provide guidance to health professionals in the UK, in May 2018. *We hope you will find this helpful as you consider our request, but please call us if you need more information or clarification.*

The full report can be accessed using the following link: [Access to health records \(bma.org.uk\)](https://www.bma.org.uk/access-to-health-records)



### 8. Deceased patients

- GDPR does not apply to data concerning deceased persons.
- Any continuing ethical obligation to respect a patient's confidentiality needs to be balanced with other considerations, such as the interests of justice and of people close to the deceased person.

#### 8.1 Are there any rights of access to a deceased patient's records?

- Statutory rights are set out in the Access to Health Records Act 1990 and the corresponding legislation in Northern Ireland, the Access to Health Records (Northern Ireland) Order 1993.

# Life Claims: Primary Care Support England (PCSE) and GPs

Thank you



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